| STANDARD OPERATING PROCEDURE | | | G-1410 |
|---|---|---|---|
| | SARPY COUNTY SHERIFF'S OFFICE<br>PAPILLION * NEBRASKA<br>**GREG LONDON**<br>**SHERIFF** | DATE ISSUED<br>**06/08/22** | DATE REVISED | DATE REVIEWED<br>02/02/25 |
| | | APPROVED:<br>*GREG LONDON* | | |
| CHAPTER TITLE<br>GENERAL | RESOURCES | | | |
| SUBJECT<br>SEXUAL MISCONDUCT | CROSS REFERENCE<br>G-1400 HARASSMENT<br>G-1200 STANDARDS OF CONDUCT<br>G-2100 COMPLAINT PROCEDURE | | | |

## I. Purpose:

The purpose of this policy is to establish the guidelines to prevent and effectively address sexual misconduct by Sarpy County Sheriff's Office personnel.

## II. Policy:

It is the policy of the Sarpy County Sheriff's Office to proactively prevent sexual misconduct within the Sarpy County Sheriff's Office and hold personnel responsible for any violations. The Sarpy County Sheriff's Office strictly prohibits sexual harassment, sexual assault, or sexual abuse of any fellow employee or citizen by any employee of the Sheriff's Office. All employees shall report such violations and suspected violations of this policy.

Employees found responsible for violating this policy shall be subject to disciplinary action, which could include job termination.

## III. Definitions:

**Sexual Misconduct:** Sexual harassment, sexual assault, or any inappropriate or unwanted sexual behavior committed against a fellow employee or citizen by an employee of the Sarpy County Sheriff's Office (see G-1400 HARASSMENT). This includes acts committed on-duty, as well as off-duty involving Sheriff's Office equipment, sheriff's office property or vehicles, regardless of the act being consensual.

## IV. Procedure:

**A. Prohibited Acts:** No employee shall:

**1.** Engage in sexual misconduct. This includes:

**a)** Any sexual behavior or acts while on duty, consensual or otherwise (i.e., intercourse, masturbation, viewing/distributing pornographic material, sexting, etc.).

**b)** Sexual contact.

**c)** Sexual contact with individuals in handcuffs or individuals who have been arrested or detained.

**d)** Sexual coercion or exploitation (i.e., sexual favors in exchange for not ticketing/arresting).

**e)** Gratuitous physical contact with suspects.

**f)** Unwanted employee-initiated sexual contacts directed towards others.

**g)** Engaging in community-member initialed sexual contact while on-duty.

**h)** Voyeuristic actions that are sexually motivated.

**i)** Inappropriate or unauthorized use of sheriff's office resources for other than law enforcement purposes.

**2.** Using electronic communication (social networks, text, etc.) to engage in sexual misconduct while on-duty.

**3.** Retaliation against any individual reporting acts of sexual or suspected acts of sexual misconduct.

**B.** **Employee Responsibilities**: All employees shall be responsible for assisting in the prevention of sexual misconduct by Sarpy County Sheriff's Office personnel. Any employee who becomes aware or suspects sexual misconduct by a Sheriff's Office employee shall:

**1.** Notify his or her supervisor or file a formal complaint with the Professional Standards Unit.

**2.** The employee is not required to address the individual responsible for the misconduct.

**C.** **Supervisor Responsibilities**:

**a)** Personnel in any supervisory position learning of an incident of sexual misconduct shall:

**(1)** Notify his or her division commander.

**(2)** Begin an investigation into the incident and determine if it may be handled by the supervisor or is best handled by filing an internal complaint. The internal complaint procedure following established guidelines (see G-2100 Complaint Procedure).

**(3)** Inform an administrative commander.

**b)** Any failure by a supervisor to report an incident of sexual misconduct shall be considered to be in violation of this policy and shall subject the supervisor to disciplinary action.

**D.** **Training:** Sheriff's personnel are responsible for reviewing this policy as well as G-1400 Harassment and G-2100 Complaint Procedure annually.

**E.** **Prohibition Against Retaliation:** It shall be considered a separate violation of this policy to coerce, intimidate, retaliate, or interfere with an individual wishing to file a complaint or assist in an investigation.